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PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/03/2017/93.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)

Order under Section 4(1)

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between,

Mr. N.K. Upali Rupasinghe, No. 24/2, Liyanage Mawatha, Nawala Road, Rajagiriya.

and

Sri Lankan Airlines Limited, Bandaranaike International Airport, Katunayake.

NOW THEREFORE I, Ravindra Samaraweera, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. S.G.Sooriyaarachchi, No. 22/1, Siri Pamarathana Mawatha, Menikdiwela to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

RAVINDRA SAMARAWEEERA

Minister of Labour and Trade Union Relations.

28th February, 2019.

Colombo.



My No.:IR/COM/03/2017/93.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**Mr. N. K. Upali Rupasinghe, No. 24/2, Liyanage Mawatha, Nawala Road, Rajagiriya.
and

Sri Lankan Airlines Limited, Bandaranaike International Airport, Katunayake.

STATEMENT OF MATTER IN DISPUTE**The matter in dispute between the aforesaid parties is-**

Whether Mr. N. K. Upali Rupasinghe working at Sri Lankan Airlines Limited had been caused injustice by,

1. Not being promoted up to now, after joining as a Grade E-V Executive Engineer from 20.02.1998 with a long foreign experience and been promoted as a Grade 9 Manager from 01.04.2001,
2. Suspension of the previdge given when he joined employment to reimburse a sum equal to the value of 30 gallons of petrol with effect from 01.10.1999 without prior notice,
3. Being given only the first 20% salary increase out of the 40% salary increase allowed by Circular dated 23.11.1999 which had been given to all other employees in two 20% installments and
4. Deprivation of the on-call allowance of Rs.5000/- which was given from his appointment date with effect from 01.01.2011, And if such injustice had been caused to what relief he is entitled.

A. WIMALAWEERA,
Commissioner of Labour.Dated at the Office of the Commissioner of Labour,
Colombo this 26th day of January 2019.

03- 1018

My No.: IR/COM/04/2017/234.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)****Order under Section 4(1)**

WHEREAS AN Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between -

Mrs. H. W. S. C. K. Wijayawardena, No. 18/5, "Wijayapahaya", 2nd Lane, Ambagahapura Housing Scheme, Boralesgamuwa
the one part

AND

Bank of Ceylon Head Office, 26th Floor, No.04, Bank of Ceylon Mawatha, Colombo 01

NOW THEREFORE I, Ravindra Samaraweera, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes - Special Provisions) Act, No. 37 of 1968 hereby appoint Mr. K. M. Sarathchandra, No. 160, Mapalangedara, Diwulapitiya to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

RAVINDRA SAMARAWEEERA,
Minister of Labour, Trade Union Relations.28th February 2019,
Colombo.

My No.: IR/COM/04/2017/234.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mrs. H. W. S. C. K. Wijayawardena, No. 18/5, "Wijayapahaya", 2nd Lane, Ambagahapura Housing Scheme, Boralesgamuwa

AND

Bank of Ceylon Head Office, 26th Floor, No.04, Bank of Ceylon Mawatha, Colombo 01

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is –

“Whether Mrs. H. W. S. C. K. Wijayawardena who worked as an Assistant Bank Manager of the Bank of Ceylon had been caused injustice by being terminated on 15.04.2007, the decision taken by the Bank not to pay her pension and reduction of part of her Bank of Ceylon Provident Fund and if so, to what reliefs She is entitled.

A. WIMALAWEERA,
Commissioner General of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo this 20 day of February, 2019.

03 - 1019